

23STCV31105 23STCV31105

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Case Number: 23STCV31105 Hearing Date: August 18, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV31105

RYNOL

HYLTON, AN INDIVIDUAL vs COURTNEY + KURT, INC, A CALIFORNIA CORPORATION

August

18, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT COURTNEY + KURT, INC.'S MOTION FOR NEW TRIAL.

RULING:

The Court denies the Motion
for New Trial.

Plaintiff to give notice.

I.

BACKGROUND

On December 20, 2023, RYNOL
HYLTON (Plaintiff) filed a Complaint against COURTNEY+KURT, INC. (Defendant).

On May 28, 2024,
Plaintiff filed a First Amended Complaint (FAC), listing Causes of Action for:

1.

RETALIATION UNDER THE FAIR EMPLOYMENT & HOUSING ACT ("FEHA") – GOVERNMENT
CODE SECTION 12940, et seq. (FOR COMPLAINING ABOUT RACISM INCLUDING OPPRESSIVE
AND MALICIOUS USE OF THE N-WORD BY COMPANY OWNER IN A WORK SETTING);

2.

FAILURE TO PREVENT VIOLATIONS OF FEHA; and

3.

WRONGFUL TERMINATION OR OTHER ADVERSE EMPLOYMENT ACTION IN VIOLATION OF PUBLIC
POLICY .

Plaintiff alleged that Defendant
wrongfully terminated his employment after he complained about hearing a racial
slur repeated by a co-owner while at work.

On April 29, 2026, the
Court denied Defendant's Motions for Mistrial and Nonsuit.

II.

LEGAL STANDARD

"A trial court serves as
a "gatekeeper" on a motion for new trial. It opens the gate only rarely, a
testament to the fact that the vast majority of trials ... are fairly conducted.
In these cases, motions for new trial are routinely made, routinely denied, and

are routinely affirmed on appeal.” (Baker v. Amer. Horticulture Supply, Inc. (2010) 186 Cal.App.4th 1059, 1068.) New trials shall not be granted unless moving parties show a reasonable probability that a more favorable result could have been obtained, were it not for an error. (Winfred D. v. Michelin No. Amer., Inc. (2008) 165 Cal.App.4th 1011, 1038.) “[O]rders granting a new trial are examined for abuse of discretion.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 859. Accord, Lane v. Hughes Aircraft Co. (2000) 22 Cal.4th 405, 412.) In ruling on a new trial, a trial court sits as an independent trier of fact. (Ibid.) Code of Civil Procedure section 657 defines grounds for a new trial. (Oakland Raiders v. National Football League (2007) 41 Cal.4th 624, 633.)

III.

ANALYSIS

Defendant summarizes points,
as follows:

“[T]here are four principal issues that individually and cumulatively warrant a new trial: (1) Plaintiff’s counsel engaged in improper argument during closing argument; (2) the jury was improperly exposed to evidence concerning financial losses suffered by Plaintiff, an issue that was the basis for Defendant’s mistrial motion and that the Court later reversed, but only after the prejudicial effect had already been injected into the case; (3) a juror failed to remain attentive to the evidence and proceedings, including by sleeping during portions of trial; and (4) the Court gave an improper instruction to the jury on the element of causation.”

(Motion, 4:5-12.)

In response, Plaintiff’s
Opposition makes the following points:

“The challenged closing remark was brief, interrupted, and followed by a targeted curative instruction. The jury awarded only one-fifth of the \$500,000 Plaintiff requested, showing independent judgment rather than passion. The financial testimony was stricken and disregarded under the Court’s instruction. The

alleged “sleeping-juror” issue was investigated by the Court, and found to be a non-issue and Defendant cannot show actual missed material testimony or prejudice. The supplemental causation instruction properly answered the jury’s question about “substantial factor” causation of harm, without altering the separate FEHA liability elements. And, because Defendant has not shown any prejudicial error, there is no cumulative prejudice to aggregate.”

(Opposition, 1:16-23.)

“In ruling on a request for a new trial based on jury misconduct, the trial court must undertake a three-step inquiry.... First, it must determine whether the affidavits supporting the motion are admissible.... If the evidence is admissible, the trial court must determine whether the facts establish misconduct.... Lastly, ... the trial court must determine whether the misconduct was prejudicial.” (Whitlock v. Foster Wheeler, LLC (2008) 160 Cal.App.4th 149, 160.)

The burden is on the moving party to affirmatively show that prejudice resulted from juror misconduct. (West v. Reigal (1962) 208 Cal.App.2d 638, 643.)

“To demand theoretical perfection from every juror during the course of a trial is unrealistic.” (Bandana Trading Co. v. Quality Infusion Care (2008) 164 Cal.App.4th 1440, 1446.)

“[T]he effect of misconduct can ordinarily be removed by an instruction to the jury to disregard it,....” (Hart v. Wielt (1970) 4 Cal.App.3d 224, 232.)

The handling of a jury instruction does not result in reversal where the error “was harmless because it is not reasonably probable plaintiffs would have obtained a more favorable result in its absence.” (Ayala v. Arroyo Vista Family Health Center (2008) 160 Cal.App.4th 1350, 1361.)

Here, as to each issue raised in the Motion (improper argument, financial proof, juror inattentiveness, and a causation instruction), the Court finds that it timely took curative measures to avoid any prejudice to Defendant, and that there was no prejudice that was immediate or persisting.

The attorney argument successfully
was countered by proper jury instructions against relying upon it.

Irrelevant evidence about
economic damages had no adverse effect on the Jury Verdict, including because
the Special Verdict clearly guided the Jury to find only noneconomic damages,
defined to be emotional distress. Additionally, the innocuous nature and
limited extent of the proof had no significant tendency to affect jury emotions
or thought, such that there was no real risk of Defendant suffering any type of
prejudice. Further, any effect was removed by instructing the jury to disregard
the proof.

Attentiveness was resolved
by inquiries to the juror who sufficiently confirmed ongoing awareness of trial
without sleeping.

Regarding the jury
instruction, the Court concludes that it properly performed its role in
instructing the jury with correct law. Specifically, CACI 430 is usable
harmoniously with FEHA law, in defining “substantial factor” as being more than
“remote and trivial”. That correct statement of law helps add details to, “the
proper standard of causation in a FEHA ... claim is ... ‘a substantial motivating”
reason,...” (Alamo v. Prac. Mgmt. Info. Corp. (2013) 219 Cal.App.4th 466,
469–470.) And Defendant cites no governing law to the contrary. “A legal
proposition asserted without apposite authority necessarily fails.” (People v. Taylor (2004) 119 Cal.App.4th
628, 643.)

IV.

CONCLUSION

Therefore, the Court denies
the Motion for New Trial.